

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Hayden Zacky
Judge of the Superior Court
County of Los Angeles
900 Third Street
San Fernando, CA 91340

Re: Sanchez, Richard
CDC No.: AV1625
Case No.: PA079520-01
Date of Sentence: October 28, 2014

Dear Honorable Hayden Zacky:

The purpose of this letter is to provide the court with authority to resentence Richard Sanchez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Sanchez was sentenced in 2014, and was convicted of section 245, subdivision (A)(4), Assault likely produce GBI. The trial court sentenced inmate Sanchez on October 28, 2014. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Sanchez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Sanchez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

HY1625
OK TO GO STWD NOTED
12/14/12

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - NORTHVALLEY DISTRICT			AV1625		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SANCHEZ, RICHARD		DOB: 02-09-1971		PA079520-01 -A	
AKA: SANCHEZ, HERBERT ARMANDO		AV1625		 -B	
CII NO.: 007973357				-C	
BOOKING NO.: 3847802		☐ NOT PRESENT		-D	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT					
DATE OF HEARING 10-28-2014		DEPT. NO. NVN		JUDGE HAYDEN ZACKY	
CLERK TROY PODRATZ		REPORTER ELAINE SMITH		PROBATION NO. OR PROBATION OFFICER X-403738 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE REENA AJIT DESAI, DA				COUNSEL FOR DEFENDANT M. DAVID HOUCHIN, BAR PANEL ATTORNEY ☒ APPOINTED	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO ITEM 6)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
01	PC	245(A)(4)	Assault likely produce GBI	2014	10 / 02 / 14	X			U								4	0
02	PC	243(D)	Battery w/serious bdily injry	2014	10 / 02 / 14	X			M					X			0	0
					/ /													
					/ /													
					/ /													
					/ /													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
01	PC 12022.7(A)	3 YRS					3 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
PC 186.22(B)(1)(A)	4 YRS					4 0
PC 186.22(B)(1)(A)	S					0 0

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)
☐ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11
☐ per PC 667(b)-(l) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:		
7. ☐ Additional indeterminate term (see CR-292).		
8. TOTAL TIME:	11	0

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SANCHEZ, RICHARD			
PA079520-01	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 300.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 300.00 per PC 1202.45 suspended unless parole is revoked.
\$ [] per PC 1202.44 is now due, probation having been revoked.

Case B: \$ [] per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ [] per PC 1202.45 suspended unless parole is revoked.
\$ [] per PC 1202.44 is now due, probation having been revoked.

Case C: \$ [] per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ [] per PC 1202.45 suspended unless parole is revoked.
\$ [] per PC 1202.44 is now due, probation having been revoked.

Case D: \$ [] per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ [] per PC 1202.45 suspended unless parole is revoked.
\$ [] per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ [] ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$ [] ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ [] ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ [] ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ [] per PC 1202.5 \$ [] per VC 23550 or [] days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ [] Lab Fee per HS 11372.5(a) ☐ \$ [] Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ [] per PC 1202.5 \$ [] per VC 23550 or [] days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ [] Lab Fee per HS 11372.5(a) ☐ \$ [] Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ [] per PC 1202.5 \$ [] per VC 23550 or [] days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ [] Lab Fee per HS 11372.5(a) ☐ \$ [] Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ [] per PC 1202.5 \$ [] per VC 23550 or [] days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ [] Lab Fee per HS 11372.5(a) ☐ \$ [] Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$80.00 per PC 1465.8. e. Conviction Assessment: \$60.00 per GC 70373. f. Other: \$ [] per (specify): []

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): DNA per PC 296

11. REGISTRATION REQUIREMENT: ☐ per (specify code section): []

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: [] Suspended: [] Served forthwith: []

13. Other orders (specify): The Court recommends the defendant be housed at Fire Camp.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	542	271	271 [] 2933 [] 2933.1 [] 4019
B			[] 2933 [] 2933.1 [] 4019
C			[] 2933 [] 2933.1 [] 4019
D			[] 2933 [] 2933.1 [] 4019
Date Sentence Pronounced		Time Served in State Institution	
10 28 2014		DMH	CDC CRC
		[]	[] [] []

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.
Defendant's race/national origin: HISPANIC

15. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☐ other (specify): []

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify): []

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

L. LEON

DATE

11-04-2014

